



Bangor Market Act 1980

CHAPTER xvii

ARRANGEMENT OF SECTIONS

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within the said limits should be held therein, and in any other place to be provided under the provisions of the said Act:

(4) The said Act of 1855 further provided for the payment of compensation to the person therein mentioned who claimed to be the owner of tolls and other dues then payable in respect of the then existing market which had for many years been held in the town of Bangor in the county of Caernarvon, which now comprises part of the area of the town council of Bangor in the borough of Arfon in the county of Gwynedd:

(5) The Company in pursuance of the said powers purchased within the said limits a market house and other buildings and have also acquired other land for the said purposes but did not erect a market house, market place or market places nor any public buildings:

(6) By an indenture dated 19th April 1860 and made between Llewelyn Jones and Hugh Beevor Roberts of the first part, John Morgan of the second part, William Taylor Morgan of the third part, John William Hughes of the fourth part, Catherine Japp of the fifth part, Richard Threlfall Power and Susan, his wife, William Thomas and Anne, his wife, Thomas Thomas Parry and Robert Thomas Parry of the sixth part and the Company of the seventh part certain property situate in the High Street, Bangor, was purchased by the Company to have and to hold the said premises for the use of the Company for ever according to the true intent and meaning of the said Act of 1855:

1948 c. 38.

(7) On 18th February 1977 the Company, having duly complied with the requirements of Part VIII of the Companies Act 1948 with respect to registration under the said Part, were incorporated as a company limited by shares and, in accordance with the certificate of incorporation and section 389 of the said Act of 1948, the Company's name was changed to the Bangor Market and Public Institutions Company Limited:

(8) On 22nd May 1979 the Registrar of Companies certified that the Bangor Market and Public Institutions Company Limited had become incorporated under the name of the Bangor Market Company Limited:

(9) The Company propose to alter the nature of their undertaking to meet the current needs and requirements of the change of circumstances affecting the market and the facilities provided therein:

(10) It is expedient, in order to enable the Company to carry on their business to the best advantage and in accordance with present-day requirements, that particular restrictions and limitations imposed on the Company by the said Act of 1855 should be modified or removed:

(11) It is expedient that further powers be conferred on the Company in relation to the capital and management of their undertaking as in this Act contained:

(12) It is further expedient that the other powers contained in this Act should be conferred on the Company and that the other provisions of this Act be enacted:

(13) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act may be cited as the Bangor Market Act 1980. Short and collective titles. 1855 c. xxxi.
 (2) The Bangor Markets and Public Institutions Act 1855 and this Act may be cited together as the Bangor Markets Acts 1855 and 1980.

2. In this Act, unless otherwise expressly provided or the subject Interpretation. or context otherwise requires—

“the Act of 1855” means the Bangor Markets and Public Institutions Act 1855;

“the Act of 1948” means the Companies Act 1948; 1948 c. 38.

“the Company” means the Bangor Market Company Limited;

“the limits of the Act of 1855” means the limits specified in section IV (Limits of Act) of the Act of 1855;

“a market” means any market held by the Company in that part of the area of the town council of Bangor in the borough of Arfon in the county of Gwynedd as is within the limits of the Act of 1855;

“the undertaking” means the undertaking of the Company as for the time being authorised.

3. The Markets and Fairs Clauses Act 1847, so far as the same Incorporation is applicable to the purposes and is not inconsistent with or varied by the provisions of this Act, is hereby incorporated with of Markets and Fairs Clauses Act 1847. 1847 c. 14. and forms part of this Act and in the construction of the said Act of 1847, as so incorporated, the expression “the special Act” shall be read as a reference to this Act and the expressions “company” and “the undertakers” shall mean the Company.

4.—(1) The Company may, on any land within the limits of the Power to hold Act of 1855 which the Company have purchased or in respect of market. which the Company hold any lease or tenancy or upon which the Company are licensed to enter for the purpose of holding a market for the exposure and sale of all marketable things, goods and

commodities of any description which are usually sold in markets and fairs, establish and maintain such a market, and notwithstanding anything in the Act of 1855, may from time to time remove such market from any such land either temporarily or permanently to any other such land for the purpose of improving, enlarging, altering, extending, reconstructing, or rebuilding such market.

S.I. 1977/289.

(2) Any development authorised by subsection (1) of this section shall not be deemed for the purposes of the Town and Country Planning General Development Order 1977 to be development authorised by an Act which designates specifically both the nature of the development and the land upon which it may be carried out.

Additional
capital.

5.—(1) Notwithstanding the provisions of section VII of the Act of 1855 the Company may from time to time raise additional share capital not exceeding in the whole £500,000 by the creation and issue of ordinary shares or stock, or preference shares or stock, or wholly or partly by one or more of those modes respectively.

(2) (a) The Company may raise for the purposes of the undertaking, either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or by both of these modes, or partly by one and partly by the other, any additional sum or sums of money not exceeding in the whole the amount (including premiums and allowing for discounts) of share capital for the time being created and issued under the powers of this Act.

(b) The powers conferred by this subsection shall be without prejudice to the right of the Company to re-borrow from time to time any amounts which, having been raised by borrowing on mortgage or by the creation and issue of redeemable debenture stock, are thereafter paid off.

Additional
share capital
to be part of
general capital.

6. The additional share capital authorised by section 5 (Additional capital) of this Act shall form part of the general share capital of the Company and, save as is otherwise expressly provided by the terms of issue thereof, the holders thereof respectively in proportion to the amount of their shares and stock shall be subject and entitled to the same powers, provisions, liabilities, rights, privileges and incidents in all respects as holders of share capital of the Company of the same class or description.

Issue of new
capital.

7. Any share capital created after the passing of this Act may, subject to the terms of the resolution by which it was created, be issued at such time, to such persons, on such terms and conditions and in such manner as the directors think advantageous to the Company.

Sub-division
of shares.

8. The Company may in pursuance of a resolution passed at a general meeting of the Company sub-divide their shares, or any of them, into shares of smaller amount than is prescribed, so,

however, that in the sub-division the proportion between the amount paid and the amount, if any, unpaid on each reduced share shall be the same as it was in the case of the share from which the reduced share is derived.

9.—(1) Notwithstanding anything in any enactment or other instrument constituting or regulating the Company, the Company may exercise the powers of paragraph (a) of subsection (3) of section 394 (effect of registration under Part VIII) of the Act of 1948 and adopt Table A in the First Schedule to the Act of 1948 with such modifications as appear to them to be appropriate.

(2) Upon the adoption of Table A in accordance with subsection (1) of this section, subsection (1) of section 5 (Additional capital), section 6 (Additional share capital to be part of general capital), section 7 (Issue of new capital) and section 8 (Sub-division of shares) of this Act and such of the provisions of the Act of 1855 which are specified in Schedule 1 to this Act shall cease to have effect.

10.—(1) Notwithstanding anything contained in the Act of 1855, or any enactment from time to time relating to the Company, the Company may acquire by purchase or otherwise, retain, hold or use any land and may from time to time, for such considerations or such rents and upon such terms (pecuniary or otherwise) and conditions as they may from time to time think fit, sell, exchange, lease or otherwise dispose of any land from time to time belonging to them and which in the opinion of the Company either may be disposed of for the better advantage of the undertaking or may not be for the time being required for the purposes of the undertaking and (for such term or period as they may think proper) may lease or grant the use or occupation of or easements or rights over or affecting any shop, building, work, approach or convenience for the time being belonging to or provided by them.

(2) The Company—

(a) may, for the purposes of the undertaking, manage, use or develop land belonging to or held by them as they think fit; and

(b) in addition may, with a view to selling or otherwise disposing of any right or interest in the land after the development is carried out—

(i) retain any land belonging to them which is not required for the purposes of the undertaking and develop it or procure its development for use by other persons; and

(ii) where the use of land belonging to them for the purposes of the undertaking can be combined with its use for other purposes, develop the land or procure its development for use wholly or partly by other persons.

(3) The Company may acquire other land by agreement, whether by purchase, exchange, lease, licence or otherwise, for the purpose of developing it or of procuring its development together with the land already belonging to them.

Power to
charge
stallages
or rents.

11.—(1) The Company shall have power to charge the stallages or rents set out in Schedule 2 to this Act.

(2) The Company may, with the sanction of the Secretary of State, from time to time alter or add to the stallages or rents set out in Schedule 2 to this Act and any such altered stallages or rents shall as from the date on which they come into operation be substituted for the corresponding stallages or rents payable under this section and the said schedule.

(3) The Company may also from time to time in addition to the stallages or rents referred to in this section make such additional charges as the Secretary of State may sanction for or in respect of the provision of light, heat or water for the accommodation of persons using or occupying stalls, standings, stands, benches, compartments or other conveniences or spaces of ground forming part of the undertaking and for the cleansing of and removal of refuse from any such stalls, standings, stands, benches, compartments or other conveniences or spaces of ground.

Repeal.

12. Such of the provisions of the Act of 1855 as are specified in Schedule 3 to this Act are hereby repealed.

Saving for
Arfon Borough
Council and
Land
Authority
for Wales.

13. Nothing in this Act shall derogate from the functions conferred upon the Arfon Borough Council and the Land Authority for Wales.

Costs of Act.

14. The costs, charges and expenses preliminary to and of and incidental to the applying for and preparing, obtaining and passing of this Act shall be paid by the Company and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 9 (2).

PROVISIONS OF THE ACT OF 1855 CEASING TO HAVE EFFECT UNDER
SECTION 9 (ADOPTION OF TABLE A) OF THIS ACT

So much of section I (8 & 9 Vict. cc. 16 & 18. and 10 & 11 Vict.
c. 14. incorporated) as incorporates the Companies Clauses
Consolidation Act 1845;

1845 c. 16.

Section VIII (Calls);

Section X (Number of Directors);

Section XII (Qualification of Directors);

Section XIII (Quorum of Meeting of Directors).

SCHEDULE 2

Section 11 (1).

STALLAGES OR RENTS TO BE TAKEN AT THE MARKET

From the occupier of every stall placed on the market land occupied
for the sale of any commodity whatsoever a daily sum not exceeding
20 pence for each superficial square foot or fractional part thereof of the
land so occupied.

SCHEDULE 3

Section 12.

PROVISIONS OF THE ACT OF 1855 REPEALED

Section IX (Power to borrow on Mortgage);

Section XVII (All Markets and Fairs to be held in new Market
House and Market Place);

Section XIX (Compensation to present Owner of Tolls);

Section XX (Power to take Tolls for Stallages, &c. as in
Sched. (A.));

Section XXI (for Weighing, as in Sched. (B.));

Section XXII (for Use of Weighing Machines, as in Sched. (C.));

Section XXV (Power to erect public Buildings);

Schedule (A.) List of Stallage, Rents, and Tolls to be taken.

Schedule (B.)

Schedule (C.)

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